



CHAPTER 19.

An Act to amend the Acts relating to Public Libraries, Museums, and Gymnasiums, and to regulate the Liability of Managers of Libraries to Proceedings for Libel. A.D. 1901.
[17th August 1901.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Amendment of Public Libraries Acts, 1892 and 1893.

1. This Act may be cited as the Public Libraries Act, 1901, and shall be construed as one with the Public Libraries Act, 1892 (herein-after referred to as the principal Act), and the Public Libraries (Amendment) Act, 1893, and those Acts and this Act may be together cited as the Public Libraries Acts, 1892 to 1901. Short title and construction.
55 & 56 Vict.
c. 53.
56 & 57 Vict.
c. 11.

2.—(1.) Any commissioners appointed for a library district under the principal Act may be either voters in the district or persons who, though not voters, would, if the district were a rural parish having a parish council, be qualified for election as parish councillors. Qualification of library commissioners.

(2.) Section forty-six of the Local Government Act, 1894, relating to disqualifications for election to or membership of certain authorities, shall have effect as if a library authority, being a body of commissioners appointed under the principal Act, were one of the authorities mentioned in that section. 56 & 57 Vict.
c. 73.

3.—(1.) A library authority may make byelaws for all or any of the following purposes relating to any library, museum, art gallery, or school, which by virtue of the principal Act or this Act is under their control, that is to say :

- (a) for regulating the use of the same and of the contents thereof, and for protecting the same and the fittings, furniture, and contents thereof from injury, destruction, or misuse ;
- (b) for requiring from any person using the same any guarantee or security against the loss of or injury to any book or other article ;
- (c) for enabling the officers and servants of the library authority to exclude or remove therefrom persons committing any offence against the Libraries Offences Act, 1898, or against the byelaws.

Power to library authority to make byelaws.

61 & 62 Vict.
c. 53.

A.D. 1901.

38 & 39 Vict.
c. 55.

(2.) All byelaws under this section shall be made subject and according to the provisions respecting byelaws contained in sections one hundred and eighty-two to one hundred and eighty-six of the Public Health Act, 1875, and those sections shall apply as if the expression "local authority" therein included in every case a library authority.

(3.) All offences and penalties under any such byelaw may be prosecuted and recovered in manner provided by the Summary Jurisdiction Acts.

Extension of
61 & 62 Vict.
c. 53.

4. The Libraries Offences Act, 1898, shall apply to any museum, art gallery, or school provided under the Public Libraries Act, 1892.

Power to
library
authorities
to make
agreements
for use of
library.

5.—(1.) The library authorities of two or more library districts may agree to share, in such proportions and for such period as may be determined by the agreement, the cost of the purchase, erection, repair, and maintenance of any library building in one of those districts, and also the cost of the purchase of books and newspapers for such library, and all other expenses connected with the same, and may also agree as to the management and use of the library, and as to the interchange, hire, and use of books and newspapers belonging to such authorities respectively.

(2.) This section shall apply, with the necessary modifications, to a museum, school for science, art gallery, or school for art, in like manner as to a library.

Amendment
of 55 & 56
Vict. c. 53.
s. 18, as to
expenses in
parishes.

6. In a library district, being a parish, the sanction of the parish meeting or vestry shall not be required annually for raising the sums from time to time due from the parish for defraying the expenses incurred by the library authority, and those sums shall be paid by the overseers on the order of the library authority. But in any parish in a rural district the sanction of the parish meeting shall be required in the year one thousand nine hundred and eleven, and in every tenth year thereafter: Provided that nothing in this section shall affect the operation of section eleven of the Local Government Act, 1894.

56 & 57 Vict.
c. 73.Application of
54 & 55 Vict.
c. 22, to
museum pro-
vided under
principal Act.

7. An urban authority for whose district the Museums and Gymnasiums Act, 1891, has been adopted, either wholly or so far as it relates to museums only, may appropriate for the purposes of that Act a museum provided for the district under the principal Act, and thereupon the Museums and Gymnasiums Act, 1891, shall apply to the museum, as if it were provided under that Act.

Notice to
Local Govern-
ment Board.

8. On the adoption of the principal Act for any library district, the library authority shall forthwith give notice in writing of such adoption to the Local Government Board. The library authority of every district in which the Act has already been adopted shall give the like notice within three months after the passing of this Act.

Definition
of "voter."
56 & 57 Vict.
c. 73.

9. In any library district every person who is a parochial elector within the meaning of the Local Government Act, 1894, shall be a voter for the purposes of the principal Act and this

Act; and parochial electors shall for all the purposes of the A.D. 1901. principal Act be substituted for county electors.

10. Where in any borough or urban district a building provided under the principal Act shall be damaged through the subsidence of the ground, any expenses incurred by the town council or urban district council in the repair of the damage thereto, shall not be reckoned for the purposes of any limitation of rate under section two of the said principal Act.

Expenses of repairing damage from subsidence not to be reckoned in limitation of rate.

Extent of Act.

11. This Act shall not apply to Scotland.

Act not to apply to Scotland.

Application of Act to Ireland.

12. The provisions of this Act enabling a library authority to make byelaws for purposes other than those relating to the Libraries Offences Act, 1898, and otherwise relating to such byelaws, shall extend to Ireland with the substitution of the Public Libraries (Ireland) Acts, 1855 to 1894, for the principal Act, and of sections two hundred and nineteen to two hundred and twenty-three of the Public Health (Ireland) Act, 1878, for sections one hundred and eighty-two to one hundred and eighty-six of the Public Health Act, 1875, and of the expression "sanitary authority" for "local authority."

Application of certain provisions to Ireland.

41 & 42 Vict. c. 52.

Application of the Museums and Gymnasiums Act, 1891, and Public Libraries (Amendment) Act, 1893, to London.

13. The Museums and Gymnasiums Act, 1891, and the Public Libraries (Amendment) Act, 1893, shall extend to the administrative county of London, and for the purpose of such extension shall be modified as follows:—

Application to London of 54 & 55 Vict. c. 22, and 56 & 57 Vict. c. 11.

The expression "urban authority" shall include the common council of the city of London and a metropolitan borough council, and the expression "district" or "urban district" shall include the city of London and a metropolitan borough;

Any expenses incurred by the common council of the city of London or by a metropolitan borough council under the Museums and Gymnasiums Act, 1891, so far as they are not defrayed by fees and other money received under the said Act, shall be defrayed in the manner in which expenses incurred by that council under the principal Act are payable.

Repeal.

14. The Acts mentioned in the schedule to this Act are hereby repealed to the extent specified in the third column of that schedule.

Repeal.

A.D. 1901.

SCHEDULE.

Section 14.

Session.	Short Title.	Extent of Repeal.
54 & 55 Vict. c. 22.	The Museums and Gymnasiums Act, 1891.	In section two, the words "or "the administrative county of "London."
55 & 56 Vict. c. 53.	The Public Libraries Act, 1892.	Section three, in so far as it is inconsistent with this Act. Sub-section one of section sixteen. Sub-section two of section eighteen, and in sub-section three of the same section the words "but "the sanction of the vestry "shall not be required for "raising the sums from time "to time due from the parish "for meeting those expenses." So much of section twenty-seven as relates to the definition of a "voter." The First Schedule.

Printed by EYRE and SPOTTISWOODE,

FOR

T. DIGBY FIDOTT, Esq., C.B., the King's Printer of Acts of Parliament.